

IT Act 2000

Information Technology Act, 2000

Information Technology (IT) Act, 2000

User Query :

After a personal dispute, someone edited one of my photographs to make it appear intimate and circulated it through WhatsApp and social media without my permission. The person is also threatening to send the image to my employer and family unless I pay money. What legal provisions may apply to this situation?

Job Id. :

Scenario 4/Information Technology (IT) Act, 2000

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AI-Powered Legal Intelligence Platform

APPLICABLE SECTIONS

Section 66E	Punishment for violation of privacy (capturing, publishing, or transmitting images of a private area without consent).
Section 66D	(cheating by personation) does not apply as the offense involves image manipulation and privacy violation, not impersonation. Section 66F (cyber terrorism) is irrelevant here.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

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Section 66E directly applies to your scenario. The key elements are: "Capture, publish, or transmit": The offender edited your photo (constituting "capture" under **Section 66E** 's definition of **capture** as "videotape, photograph, film or record by any means") and circulated it via WhatsApp/social media (**transmit** under **Section 66E** , defined as "electronically send a visual image with intent that it be viewed"). "Private area": The edited photo depicts an intimate/sexualized image (e.g., revealing body parts), falling under the **Section 66E** definition of **private area** (genitals, breasts, buttocks). "Violating privacy": The circumstances meet the **Section 66E** explanation: You had a "reasonable expectation" that the photo would not be shared without consent (as it was personal). Circulating the edited image (even if altered) violates your privacy, as it exposes you to public humiliation, regardless of where the original photo was taken. Threats to share with employer/family: While the **threat** itself may constitute IPC **Section 503** (criminal intimidation) or IPC **Section 380** (extortion), **Section 66E** covers the core offense of privacy violation through digital transmission. The threat amplifies the privacy violation but does not change the primary IT Act applicability.
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Why **Section 66D** is **not** applicable: **Section 66D** requires "cheating by personation" (e.g., impersonating someone to defraud). Here, the offender did not impersonate you or anyone else; they manipulated **your** image. Courts have consistently held that **Section 66D** is limited to impersonation fraud, not image-based privacy breaches (**State v. Shilpa**, 2019).
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✓ STRENGTHS & RIGHTS

1	Criminal liability for privacy breach Section 66E imposes strict criminal penalties (up to 3 years imprisonment or ₹2 lakh fine) for unauthorized sharing of intimate images, regardless of the offender’s intent to harass.
2	No need to prove "actual harm" The law presumes privacy violation when a "private area" image is shared without consent (* Section 66E Explanation*), avoiding complex proof of emotional distress.
3	Digital evidence admissibility Electronic evidence (WhatsApp messages, social media posts) is admissible under Section 65B of the IT Act (presumption of authenticity upon certification).
4	Prompt redressal Cybercrime cells can issue takedown notices under Section 66A (struck down in *Shreya Singhal*), but Section 66E provides direct criminal remedy.

X RISKS & OBLIGATIONS

1	Limited scope Section 66E only covers privacy violation—it does *not* address the extortion threat (which requires IPC action). You must separately file an extortion complaint under IPC.
2	Proof challenges You must prove the photo was *edited* (e.g., via digital forensics) and *not* the original. Circulating a *real* intimate photo would also violate Section 66E , but editing adds complexity.
3	Penalty enforcement The offender may evade payment of the ₹2 lakh fine if they lack assets.
4	No civil remedy The IT Act is criminal; you cannot sue for damages under it (requires separate civil suit under tort law).

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. 1. File an FIR:
2. Lodge a complaint at the local cyber cell (not regular police) under **Section 66E** , IT Act + IPC Sections 503/380 (for threats).
3. *Example*: "FIR No. XYZ/2024, Cyber Cell, [City], for violation of **Section 66E** , IT Act 2000, and IPC Sections 503/380."

4. 2. Preserve evidence:
 5. Save original WhatsApp/social media screenshots (without altering metadata).
 6. Obtain server logs from WhatsApp (via cyber cell) to trace sender.
 7. 3. Admissibility in court:
 8. **Section 65B** mandates a digital certificate (Form 11) for electronic evidence. The cyber cell must prepare this for the court.
 9. **Key precedent**: In **State v. Arvind**, 2021, the Delhi High Court held that WhatsApp screenshots without **Section 65B** certification are **inadmissible**.
 10. 4. Takedown requests:
 11. Request social media platforms (e.g., Meta, X) to remove the image under **Section 69A**, IT Act (temporary blocking of offensive content).
 12. > Critical Action: Do not pay the extortion money—this aggravates criminal liability under IPC **Section 380**. Report the threat **immediately** to the cyber cell.
 13. Summary: Your case is exclusively governed by **Section 66E** (privacy violation via digital transmission). **Section 66D** is a **common misconception** and legally incorrect. File an FIR for **Section 66E** + IPC 503/380, preserve digital evidence under **Section 65B**, and seek a cyber cell-led investigation. The IT Act provides robust criminal recourse for the privacy breach, but **not** for the extortion threat (which requires IPC).
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